REPORTABLE 11

ZIMBABWE CONSOLIDATED DIAMOND COMPANY (PRIVATE) LIMITED

v

ADLECRAFT INVESTMENTS (PRIVATE) LIMITED

CONSTITUTIONAL COURT, HARARE
30 JUNE & 14 JULY 2026

T Mpofu appearing with *T Zhuwarara* for the applicant

L Uriri appearing with *J.T Sande* for the respondent

In Chambers

GOWORA JCC:

[1] This is an urgent chamber application for stay of execution pending the determination of an application for direct access filed under CCZ 263/26. The application has been brought in terms of Rule 20 (1) of the Constitutional Court Rules, 2025.

BACKGROUND FACTS

[2] The applicant and the respondent are both companies duly incorporated in terms of the laws of Zimbabwe. The facts giving rise to this matter are as follows: On 8 February 2016, the parties entered into an agreement in terms of which the respondent was to provide mining services to the applicant. In return, the

applicant undertook to remunerate the respondent for those services upon presentation of monthly invoices.

[3] In terms of the agreement, each invoice became due and payable within fourteen days of its issuance. The agreement further provided that any amount remaining unpaid after the due date would attract interest at the rate of 2% per month until payment in full.

[4] The agreement was to expire after a year and was subject to renewal upon satisfactory performance. Upon the expiration of the agreement, the respondent continued to offer mining services to the applicant pending negotiations on the contract rate to be applied in the renewed agreement. The agreement was eventually cancelled in April 2020.

[5] On 8 October 2019, the applicant wrote to the respondent acknowledging owing the respondent an amount of USD 4 344 965.67. The figure excluded interest. On 14 November 2019, the applicant wrote another letter acknowledging an outstanding balance in excess of ZWL 5 000 000.00 for services rendered. In a letter dated 13 April 2021, the applicant further acknowledged owing USD 1 979 590.65 as at 31 December 2020 based on the contract rate of USD 2.10/ton for ore and USD 1.82/ton for waste. In that letter, the applicant confirmed that the respondent continued to offer its services despite the expiry of the contract between the parties.

[6] On 14 December 2022, the respondent issued a letter of demand in which it pointed out that the applicant had on 13 April 2021 acknowledged owing USD 1 979 590.65 and of that amount USD 1 300 486.67 had been paid, leaving a

balance of USD 679 103.98. Through the letter of demand, the respondent instructed the appellant to pay the remaining balance within 72 hours of receipt of the letter of demand. On 16 December 2022, another letter to the applicant stated that the outstanding amount as at 31 December 2018 excluding interest was USD 4 344 965.67. The letter stated that when interest was factored in, the balance due would be USD 13 824 163.22 as at 31 December 2022.

[7] The respondent then filed an urgent court application in the High Court on the basis that the undue delay by the applicant in paying the amount owed had placed it into insolvency. On 15 March 2023, the High Court granted judgment in favour of the respondent in the sum of USD 10 718 373.51 together with 2 % interest per month from the date of judgment to the date of full payment and costs on the higher scale of legal practitioner and client. The applicant appealed to the Supreme Court (court *a quo*) under case number SC 201/23, thereby suspending the execution of the aforesaid judgment. It was its argument that the High Court had misdirected itself by relying on fictitious emails to find that the applicant owed the respondent USD 4 344 965.76 through an admission of liability. It was admitted that the applicant had only admitted liability for USD 679 103.98. It was further argued that the respondent had been fully paid in RTGS dollars in 2019 and that the court wrongly converted the amount into USD despite correspondence showing that post SI 33/2019 payments were made at a one to one parity. It was further argued that the punitive costs were unjustified.

[8] *Per Contra*, the respondent argued that the issue of currency denomination was not part of the appeal, as the High Court had definitely ruled that the applicable

currency was United States Dollars, a finding not challenged on appeal. It was also argued that there were exhibits tendered constituting acknowledgements of debts.

[9] The court *a quo* found that the applicant's assertions were contrary to its own documented acknowledgments of indebtedness which varied with its claim of having settled the debt. It also found that the applicant had failed to refute the respondent's claims. With regard to prescription, it found that the applicant's acknowledgement of indebtedness had interrupted prescription. Pertaining to costs, the court *a quo* found that the applicant's refusal to fulfil its contractual obligations provided an additional justification for the imposition of costs on a higher scale. Consequently, the court *a quo* dismissed the appeal.

[10] The dismissal of the appeal rendered the High Court judgment immediately executable. As a result, the applicant approached the Constitutional Court for direct access under CCZ 263/26 challenging the constitutionality of the Supreme Court judgment. That application is still to be determined. The main contention under the application for direct access is that the Supreme Court did not determine the dispute placed before it and did not meaningfully engage the material contentions upon which the appeal depended and that the court decided its own matters which had not been raised in argument before it. It is on that basis that the applicant argues that the judgment failed to afford the applicant judicial protection, equal protection of the law and fair hearing guaranteed by the Constitution.

[11] The applicant has also proceeded to file this urgent application for stay of execution pending the determination of the application for direct access. It argues that the amount involved is extraordinary and that it continues to attract interest at 2% per month in addition to punitive costs. The applicant argues that the strain of execution will collapse the applicant's concerns. It asks this Court to consider that the applicant employs approximately 1 350 employees whose livelihoods depend on its continued ability to operate. Further, it contends that the application for direct access will be rendered a *brutum fulmen* if execution proceeds before the determination of the direct access application as the applicant may be compelled to satisfy execution under a judgment later found to have been in violation of the Constitution.

SUBMISSIONS MADE BEFORE THIS COURT

[12] At the hearing of this application, Mr *Zhuwarara,* for the applicant, submitted that the present matter concerns an application for a stay of execution pending the determination of an application for direct access. He advised the Court that the application for direct access has progressed to the stage where the applicant is awaiting directions to file heads of argument. He further argued that the matter is urgent both in terms of time and the consequences likely to ensue if relief is not granted. He contended that, should the application for a stay of execution be refused, the applicant would suffer prejudice because the application for direct access would be rendered academic before it is determined.

[13] Counsel further submitted that, unless the application is granted, the applicant's entire enterprise will collapse. He further advised the Court that the applicant employs in excess of 1,000 workers, all of whom stand to lose their employment should the enterprise cease operations. It was on this basis that counsel argued that the urgency of the matter is demonstrated not only by the element of time but also by the serious consequences that would result if the relief sought is not granted.

[14] In response to the Court's enquiry regarding its jurisdiction, counsel argued that superior courts have inherent jurisdiction to stay execution where necessary to safeguard their processes. Reliance was placed on the decision in *Synohydro Zimbabwe (Private) Limited* v *Townsend Enterprises Private Limited & Ors* SC 27/19, in which the Supreme Court affirmed that once it is seized with a matter, it has inherent jurisdiction to control and protect its own processes, including the power to stay execution.

[15] M*r Zhuwarara* further addressed the respondent's contention that the application is defective for non-compliance with rule 20(2) of the Rules, on the basis that it is not accompanied by an affidavit of urgency. In response, counsel argued that requiring both an affidavit of urgency and a certificate of urgency would be unnecessarily duplicative. He submitted that the applicant had complied with the requirements of the rule by filing a founding affidavit together with a certificate of urgency duly issued by a legal practitioner.

[16] Counsel for the applicant further submitted that the present application is akin to an *interdict pendente lite*, as its purpose is to preserve the rights of the parties pending the determination of the substantive litigation. In response to the Court's

enquiry regarding the applicable test, counsel argued that the Court is not required at this stage to consider the applicant's prospects of success. Rather, he submitted that the appropriate consideration is whether granting the relief sought accords with the interests of real and substantial justice. In support of this submission, counsel referred the Court to the decision in *African Century Limited* v *Megalink Investments (Private) Limited & Ors* SC 124/20, in which the Supreme Court held that a stay of execution may be granted where the interests of real and substantial justice so require. According to counsel, an inquiry into the applicant's prospects of success would be inappropriate, as that issue falls to be determined in the pending application for direct access. He therefore urged the Court to confine itself to whether the interim relief is necessary to preserve the status quo pending the determination of the principal application.

[17] Counsel also relied on the decision in *Mupini* v *Makoni* 1993 (1) ZLR 80 (S), in which the Supreme Court held that execution is a process of the court and that the court possesses an inherent power to regulate and control its own processes. Counsel submitted that this principle is directly applicable to the present matter as execution is imminent. He argued that, unless a stay of execution is granted, the applicant's pending application for direct access will be rendered a *brutum fulmen* thereby defeating the very purpose of the proceedings.

[18] The Court enquired of counsel what steps the applicant had taken during the period between 26 May 2026, when the judgment was handed down, and 12 June 2026, when the present application was filed. In response, counsel submitted that the applicant was first required to obtain legal advice. Thereafter, the applicant

acted by filing two applications, namely, the application for direct access, which also had attached to it the substantive application for which direct access is sought, and the present application for a stay of execution. Counsel explained that an application for direct access is an extensive process, as it requires not only an application for leave to approach the Court directly but also the filing of the substantive application in which the constitutional issues are fully ventilated. He submitted that the preparation and filing of both applications inevitably take time. Counsel contended that, viewed in that context, the period of delay was neither unreasonable nor indicative of a lack of urgency. In response to the issue of urgency, counsel relied on the decision in *The Prosecutor General* v *Busangabanye* HH 427/15, where the High Court observed that the concept of self-created urgency has been overstretched. Counsel submitted that the court therein had cautioned against an overly rigid application of the doctrine, emphasizing that a litigant should not be denied audience merely because a reasonable period elapsed before the institution of proceedings.

[19] The Court then enquired what right the applicant sought to protect through the present application. In response, counsel submitted that the right in issue is the right of access to the courts, which includes not only the right to institute proceedings but also the right to obtain effective judicial relief through the enforcement of a judgment lawfully obtained. Counsel argued that the imminent execution threatens to render the applicant's exercise of that right illusory.

[20] In response, M*r Uriri,* for the respondent, submitted that the applicant seeks an order staying the execution of a final judgment and that the grant of such relief is

contingent upon demonstrating that there is a genuine and arguable basis for the pending application for direct access. He argued that, in determining whether to grant a stay, the Court must consider whether the application complies with rule 20 of the Rules, whether urgency has been properly established, whether the application for direct access enjoys reasonable prospects of success and whether the interests of real and substantial justice warrant the suspension of execution.

[21] Counsel further submitted that the applicant's founding affidavit is deficient in that regard in that it fails to account for the period between the delivery of the judgment and the filing of the application for direct access. He argued that the applicant sought to remedy this omission only in its answering affidavit, which is impermissible. Counsel emphasised that all facts establishing urgency must be set out in the founding affidavit and cannot be introduced for the first time in subsequent affidavits or through oral submissions.

[22] He argued further that the applicant's contention that over a thousand employees would be adversely affected if execution of the judgment were not stayed was unsupported by any concrete evidence, such as audited financial statements or expert reports. Accordingly, he submitted that this contention should be rejected.

[23] The Court pointed out to Mr *Uriri* that the matter before it was a procedural matter. It was sitting in terms of section 176 of the Constitution and not exercising its jurisdiction as a Constitutional Court. Therefore, the Court observed that an enquiry into the prospects of success of the application for direct access would transform the proceedings into a hybrid application. It reasoned that, by considering the prospects of success, it would be encroaching upon the mandate of

the bench that will ultimately determine the application for direct access, since the existence of reasonable prospects of success is one of the central issues to be determined in such an application.

[24] M*r Uriri*, in response, submitted that the Court needed to consider whether the allegations advanced in the application for direct access had any factual or legal foundation. He argued that this application alleges that the Supreme Court failed to determine all the issues placed before it. Counsel further contended that a court does not violate section 69 of the Constitution merely because it does not address every issue raised by a party in exhaustive detail. Rather, a violation of section 69 would arise only where the court refuses to hear the parties altogether, thereby denying them the right to be heard.

[25] Counsel further submitted that the applicant had alternative remedies available other than pursuing the present application. In particular, he argued that the applicant could have engaged with the respondent directly, sought restitution, or instituted a claim for damages should it later transpire that the execution was wrongful.

[26] The applicant therefore prays that the Court grant an order staying execution pending the determination of the application for direct access which is yet to be determined. It seeks an order in the following terms:

"RELIEF SOUGHT

1. The application for temporary stay of execution be and is hereby granted. Consequently.
2. Pending the final determination of the applicant's application for direct access filed under case number CCZ 263/26, execution of the judgment and order granted by the High Court under HC 723/23 and sustained by

the Supreme Court of Zimbabwe under judgment number SC 33/26 be and is hereby stayed.

3. The respondent, its agents, assignees, legal practitioners, the Sherriff of Zimbabwe and/or any person acting through or under the respondent be and are hereby interdicted from executing upon, enforcing, attaching property, selling property or taking any further steps pursuant to the judgment referred to in paragraph 2 above.
4. The process of execution already issued pursuant to the judgment referred to in paragraph 2 above be and is hereby suspended pending the determination of the applicant's application for direct access under case number CCZ 263/26.
5. There shall be no order as to costs."

THE LAW

[27] A point of contention emerged during the hearing on whether an applicant seeking a stay of execution pending the determination of an application for direct access to this Court must establish prospects of success on the merits of the main constitutional application. Mr *Zhuwarara* submitted that there is no such requirement. He argued that the present application is confined to the question whether execution should be temporarily suspended pending the determination of the application for direct access. Accordingly, the issue of the merits or prospects of success of the constitutional challenge falls to be determined in the direct access proceedings themselves, where the Court will decide, among other issues, whether the application raises a constitutional issue warranting its intervention and whether there are prospects of success.

[28] Mr *Uriri* on the other hand, contended that the applicant cannot obtain the extraordinary remedy of a stay of execution without first demonstrating that a constitutional issue arises and there are reasonable prospects of success in the intended constitutional proceedings. It was submitted that, in the absence of such a showing, there would be no basis upon which the Court could justify interfering

with the enforcement of an otherwise valid and enforceable judgment. He argued that this is because the present application is entirely dependent on the application for direct access.

[29] Against these competing submissions, it is necessary to examine the legal principles governing the grant of a stay of execution.

[30] Stay of execution is an extraordinary remedy granted only where the interests of justice so require. Before this Court, an application of this nature is somewhat exceptional, as it requires the Court to exercise a remedy that falls outside the ordinary constitutional applications that routinely come before it. In this dispute, the Court is not being requested to determine the substantive constitutional rights of the parties. Instead, as ancillary relief pending the determination of an application for direct access, the Court is called upon to regulate its own process to ensure that the rights of the parties are preserved pending the process that has been filed. The Court, being a Superior Court has the inherent jurisdiction to control its processes which jurisdiction is further cemented by section 176 of the Constitution, which empowers it to protect and regulate its own process, taking into account the interests of justice. It is by virtue of these inherent procedural powers that the Court may grant such ancillary relief where it is necessary to preserve the integrity of its proceedings and to prevent injustice.

[31] The principles articulated by the Supreme Court in *Mupini v Makoni* 1993 (1) ZLR 80 (S) are applicable to the determination of an application for a stay of execution before this Court. They provide the appropriate starting point for considering the exercise of the Court's discretion in deciding whether execution

should be suspended in the interests of justice. The court, on para 80 D-E articulated as follows:

> "Execution of a judgment is a process of the court and the court has an inherent power to control its own processes and procedures, subject to such rules as are in force. In the exercise of a wide discretion, the court may set aside or suspend a writ of execution or cancel the grant of a provisional stay. It will act where real and substantial justice so demands. The onus rests on the party seeking a stay of execution to satisfy the court that special circumstances exist. Such special circumstances can be more readily found where the judgment is for ejectment or the transfer of property, because the carrying into operation of the judgment could make restitution of the original position difficult." [my emphasis]

[32] In *African Century Limited* [*supra*] the Court quoted *Erasmus Superior Court Practice* at B1-330 to B1-330A as follows:

> "As a general rule the court will grant a stay of execution where real and substantial justice requires such a stay or, put otherwise, where injustice will otherwise be done. Thus the court will grant a stay of execution where the underlying *causa* of the judgment debt is being disputed or no longer exists, or when an attempt is made to use for ulterior purposes the machinery relating to the levying of execution. It has been held that, in particular circumstances, the court could in the determination of the factors to be taken into account in the exercise of its discretion under this rule, borrow from the requirements for the granting of an interim interdict, namely that the applicant must show (a) that the right which is the subject of the main action and which he or she seeks to protect by reason of the interim relief is only *prima facie* established though open to doubt; (b) that there is a well-grounded apprehension of irreparable harm to the applicant if the interim relief is not granted and he or she ultimately succeeds in the establishing of his or her right; (c) that the balance of convenience favours the granting of interim relief; (d) that the applicant has no other satisfactory remedy." [my emphasis]

[33] The respondent has posited that the applicant has not shown on its papers that the application for direct access enjoys prospects of success. This application is filed in terms of r 20 which provides for urgent applications. Section 20 of the Constitutional Court Act [Chapter 7:22] provides as follows:

"**20 Inherent powers of Court**

The Court shall have inherent power to protect and regulate its own process and to develop the common law or the customary law, taking into account the interests of justice and the provisions of the Constitution."

[34] The Constitution, in section 176, confirms this power in specific terms. Thus, the application before me can only be one wherein the Court is enjoined to exercise powers that inhere in the Court to enable it to control its processes. As this application is ancillary to the application for direct access I am unable to agree that such an application requires that the application must depend on the prospects of success of the application to obtain direct access. An application for direct access is regulated by the Constitution itself as well as rules formulated by the Court for that purpose. Rule 26 in terms of which an application for direct access is considered specifically requires that an applicant establishes prospects of success in the substantive application for which leave is sought. R 26 provides as follows in its relevant part:

"(4) An application in terms of subrule (2) shall be filed with the Registrar and served on all parties with a direct or substantial interest in the relief claimed and shall set out—
(a) the grounds on which it is contended that it is in the interests of justice that an order for direct access be granted; and
(b) the nature of the relief sought and the grounds upon which such relief is based; and
(c) whether the matter can be dealt with by the Court without the hearing of oral evidence or, if it cannot, how such evidence should be adduced and any conflict of facts resolved.
(5) The applicant shall attach to the application a draft of the substantive application he or she seeks to file with the Court.

[36] A court seized with an application for direct access as provided above must consider whether it is the interests of justice for such access to be granted. The

factors that the Court is enjoined to consider are found in sub rule (9) which provides:

> "(9) In determining whether or not it is in the interests of justice for a matter to be brought directly to the Court, the Court or Judge may, in addition to any other relevant consideration, take the following into account—
> (a) the prospects of success if direct access is granted;
> (b) whether the applicant has any other remedy available to him or her;
> (c) whether there are disputes of fact in the matter."

[37] The jurisdiction of this Court is prescribed by the Constitution and limited to the determination, on the substance, of only constitutional matters. It therefore stands to reason that prospects of success are a consideration in the Constitutional Court where an application for direct access or leave to appeal are being considered. They are not a necessary factor for consideration where an application for stay of execution as an ancillary process where the Court is already seized with a constitutional matter for its consideration. It is also worth noting that r 26(2) is to the effect that an interlocutory application does not require leave. This is because such an application does not require the interpretation, enforcement or protection of the Constitution.

[38] Having considered the above authorities, I am inclined to take the view that a stay of execution pending an application for direct access is not an occasion upon which the Court is called upon to pronounce, even provisionally, on the substantive merits of the constitutional issues sought to be raised. To require an applicant to establish prospects of success at this stage would inevitably invite the Court to undertake a preliminary assessment of issues that properly belong to the direct access proceedings. Such an enquiry risks pre-empting the Court's later

determination of whether direct access should be granted and whether the constitutional challenge itself is sustainable.

[39] I am fortified in this view by the remarks of the Constitutional Court of South Africa in *National Treasury v Opposition to Urban Tolling Alliance* 2012(6) SA 223, at para 31, wherein it is stated:

> "[31] Having granted leave to appeal, we must now decide the merits of the appeal. To do that I need not determine the cogency of the review grounds. It would not be appropriate to usurp the pending function of the review court and thereby anticipate its decision. I have kept in mind that the rule 53 procedure might result in the lodging of a supplemented case record which would not be before an appellate court and which may entail new matters or disputes of fact which will best be dealt with by the review court itself. I nonetheless proceed to describe the subject-matter of the review for the restricted purpose of probing whether the high court was right in granting the interim interdict."

[40] The proper enquiry in an application for a stay of execution is whether the interests of real and substantial justice require that execution be suspended pending the determination of the application for direct access. The Court must consider whether the refusal of interim relief would render the constitutional proceedings nugatory, occasion irreparable prejudice, or otherwise undermine the effective administration of justice. The focus is therefore not upon the ultimate merits of the constitutional application but upon whether the circumstances justify the preservation of the *status quo* until the Court has had an opportunity to determine the application for direct access. The factors that a court before which an application for a stay of execution lies have been settled since time immemorial.[1] They have been applied by the courts in this jurisdiction in applications for provisional orders pending the determination of a dispute *inter partes*. The same considerations would apply even where an applicant seeks

[1] Setlogelo vs Setlogelo 1914 AD 221.

temporary relief from the Court where proceedings for the determination of rights are pending. This position was reaffirmed by the Constitutional Court of South Africa in National *Treasury supra*, where the Court stated:

> *"The test*
>
> [41] The high court relied on the well-known requirements for the grant of an interim interdict set out in *Setlogelo* and refined, 34 years later, in *Webster*. The test requires that an applicant that claims an interim interdict must establish *(a)* a prima facie right even if it is open to some doubt; *(b)* a reasonable apprehension of irreparable and imminent harm to the right if an interdict is not granted; *(c)* the balance of convenience must favour the grant of the interdict; and *(d)* the applicant must have no other remedy."

And later:

> "[43] A little less than 40 years before the advent of our Constitution, in *Gool*, a full bench of the Cape Provincial Division was called upon to grant an interdict restraining the minister pendente lite from exercising certain powers vested in him by a statute. Ogilvie-Thompson J, writing for a unanimous court, considered the requirements for an interim restraining order announced in *Setlogelo*, and said the following:
>
> 'The present is however not an ordinary application for an interdict. In the first place, we are in the present case concerned with an application for an interdict restraining the exercise of statutory powers. In the absence of any allegation of *mala fides*, the court does not readily grant such an interdict. . . .'

And later the learned judge observed:

> 'The various considerations which I have mentioned lead, in my opinion, irresistibly to the conclusion that the Court should only grant an interdict such as that sought by the applicant in the present instance upon a strong case being made out for that relief.

I have already held that the Court has jurisdiction to entertain an application such as the present, but in *my judgment that jurisdiction will, for the reasons I have indicated, only be exercised in exceptional circumstances and when a strong case is made out for relief*."

[41] I am therefore persuaded by the submissions advanced on behalf of the applicant. The central consideration in an application of this nature is whether the grant of a stay of execution is demanded by the interests of real and substantial justice. The question of the applicant's prospects of success is one that is more appropriately reserved for determination when the Court considers the application for direct

access on its merits. The respondent has sought reliance on *Synohydro Zimbabwe (Pvt) Ltd* v *Townsend Enterprises Ltd supra*, for the contention that the prospects of success of the application for leave for direct access are a necessary factor. I would wish to acknowledge the correctness of the *dicta* therein but state that in this particular context the principle on prospects of success established therein is inapplicable for the determination of this application.

[42] Accordingly, the Court's enquiry is confined to whether, in the circumstances of this case, real and substantial justice requires that the application be granted.

APPLICATION OF THE LAW TO FACTS

[43] Before I delve into this issue, I will start by disposing of a procedural issue which had been raised by the respondent to the effect that the applicant failed to comply with rule 20 of the Rules, which requires an urgent application to be accompanied by an affidavit requesting that the application be treated as urgent. The rule provides that,

> "(1) Where a person wishes to file an application in terms of these rules and he or she considers that the matter is one of urgency, he or she may file the application accompanied by an affidavit requesting that the application be treated as an urgent application."

[44] A proper reading of the rule demonstrates that it is couched in permissive, rather than mandatory, language. Consequently, non-compliance with the provision does not render an application fatally defective: see *Sibanda & Anor v Ncube & Others* SC 158/20 at page 14. Furthermore, it must be considered that the applicant duly filed both a founding affidavit and a certificate of urgency in

accordance with the Rules, which sufficiently establish the basis for urgency. Although Mr *Uriri* sought initially to raise argument in respect of the same after an engagement with the Court, he graciously conceded that the objection had not been properly taken. The objection on this point, being without merit, therefore fails.

Whether or not it is in the interests of real and substantial justice that the application be granted

[45] The applicant contends that it is in the interests of justice for execution to be stayed pending the determination of its application for direct access. It is submitted that execution is imminent and that, if it is permitted to proceed before the Constitutional Court determines the application for direct access, the constitutional proceedings will be rendered a *brutum fulmen*.

[46] The applicant further submits that the consequences of execution also extend beyond its own interests, as the enforcement of the judgment would have a devastating impact on its operations, resulting in the loss of employment for more than one thousand employees. On that basis, the applicant contends that the potential prejudice occasioned by immediate execution far outweighs any prejudice that the respondent may suffer if execution is temporarily stayed pending the determination of the constitutional proceedings. *Per contra*, the respondent submits that the applicant has failed to exhaust the alternative remedies available to it before approaching this Court for a stay of execution. It is argued that the applicant could have sought to engage the respondent with a view to resolving the matter amicably or, alternatively, pursued a claim for restitution

or damages should the Constitutional Court ultimately set aside the decision of the court *a quo*. On that basis, the respondent contends that the existence of these alternative remedies militates against the grant of the interim relief sought.

[47] In *Mupini, [supra]*, the Court did not provide an exhaustive definition of what constitutes "real and substantial justice." It did, however, offer important guidance by holding that the exercise of its discretion is contingent upon the existence of special circumstances warranting the grant of the relief sought. It said that,

> "The onus rests on the party seeking a stay of execution to satisfy the court that special circumstances exist. Such special circumstances can be more readily found where the judgment is for ejectment or the transfer of property, because the carrying into operation of the judgment could make restitution of the original position difficult."

[48] In the above case, the Court identified judgments for ejectment or the transfer of property as examples of situations in which special circumstances may justify the grant of a stay of execution. The present matter is similar in that it concerns the execution of a monetary judgment, the sum involved is substantial, amounting to USD 18 000 000. The execution of such a judgment would inevitably entail the attachment and sale of the applicant's assets or otherwise result in a significant depletion of its resources.

[49] The applicant further contends that the execution of the judgment would have consequences extending far beyond the ordinary incidents of a monetary award. It is argued that the payment of such a substantial sum would undermine its financial

viability, rendering it incapable of continuing its operations as a going concern and ultimately exposing it to insolvency. If those consequences were to materialise before the determination of the application for direct access, any constitutional relief subsequently granted by this Court could be rendered largely ineffectual. These are therefore circumstances that warrant careful consideration in determining whether the interests of real and substantial justice justify the suspension of execution pending the determination of the constitutional proceedings. Having considered the circumstances of this case, I am satisfied that there exists a reasonable apprehension of irreparable harm should execution be permitted to proceed before the determination of the application for direct access. The balance of convenience likewise favors the grant of a stay of execution.

[50] If execution is temporarily suspended and the application for direct access is ultimately unsuccessful, the respondent will suffer no irreparable prejudice. It will remain entitled to enforce the judgment and recover the judgment debt through the ordinary processes of execution. The stay would merely postpone, rather than extinguish, the respondent's right to execute. As was stated in *National Treasury supra:*

"*Balance of convenience*

[55] A court must be satisfied that the balance of convenience favours the granting of a temporary interdict. It must first weigh the harm to be endured by an applicant, if interim relief is not granted, as against the harm a respondent will bear, if the interdict is granted. Thus a court must asses all relevant factors carefully in order to decide where the balance of convenience rests.

[51] Conversely, if the present application is refused and execution proceeds, the consequences for the applicant may be irreversible. The application for direct access may be rendered academic if the subject matter of the constitutional proceedings is fundamentally altered by execution. Even if the applicant were ultimately successful in obtaining constitutional relief, it would be compelled to embark upon the strenuous process of seeking restitution of assets or monies already executed upon. By that stage, however, the disruption to its business operations and financial position may have already occurred, with consequences that cannot readily be undone. The Court cannot ignore the practical reality that the reconstruction of a business following the execution of assets of such magnitude is neither immediate nor straightforward.

[52] In these circumstances, the interests of real and substantial justice are better served by preserving the *status quo* pending the determination of the application for direct access. Such an approach ensures that the constitutional proceedings, should they proceed, are not deprived of their practical efficacy while occasioning no irreparable prejudice to the respondent.

DISPOSITION

[53] An application for a stay of execution is, in essence, a procedural application through which this Court, like any other superior court, exercises its inherent power to regulate and protect its own process. The enquiry before the Court is therefore confined to whether the interests of real and substantial justice warrant

the temporary suspension of execution pending the determination of the substantive proceedings.

[54] In determining such an application, it is neither necessary nor appropriate for the Court to embark upon a detailed examination of the applicant's prospects of success or the merits of the constitutional issues intended to be raised. Those are matters reserved for determination in the application for direct access, where the Court will decide whether the constitutional questions raised justify its intervention and whether it is in the interests of justice to entertain the matter.

[55] To require the applicant to establish prospects of success or to pronounce upon the constitutional issues at this interlocutory stage would effectively compel the Court to prejudge matters that properly fall within the jurisdiction of the Court hearing the application for direct access. Such an approach would not only conflate two distinct enquiries but would also risk usurping the function of the Court seized with determining the direct access application.

In the result, it is ordered as follows:

1. The application for a temporary stay of execution be and is hereby granted.
2. Pending determination of the applicant’s application for direct access under Case No CCZ 263/26, execution of the judgment and order granted by the High Court under Case No HC 723/23 and sustained by the Supreme Court of Zimbabwe under judgment number SC 33/26 be and is hereby stayed.
3. The Respondent, its agents, assignees, legal practitioners, the Sheriff of Zimbabwe and/or any person acting through or under the respondent be and are hereby interdicted from executing upon, enforcing, attaching property, selling property or taking any further steps pursuant to the judgment referred to in para 2 above.

4. The process of execution already issued pursuant to the judgment referred to in para 2 above be and is hereby suspended pending the applicant's application for direct access under Case No CCZ 263/26.
5. There shall be no order as to costs.

Sawyer and Mukushi, Applicant's Legal Practitioners.

Tarugarira Sande Attorneys, Respondent's Legal Practitioners.